

Policy recommendations for platform accountability, electoral integrity, and parliamentary oversight of AI-generated content

Executive summary

AI-generated and AI-manipulated content is reducing the cost, time, and skill needed to run high-volume influence operations, including during elections, and is increasing the plausibility of impersonation (synthetic audio/video “deepfakes”) and scalable text/image persuasion. ¹ In democratic systems committed to fundamental rights, policy responses must raise accountability and transparency while protecting lawful political speech and privacy. ²

The European Union ³ already provides a globally significant baseline through the Digital Services Act (risk assessment/mitigation, ad transparency, independent audits, data access, strong penalties) and the AI Act (mandatory transparency/marketing for synthetic content and deepfake disclosures, and significant administrative fines). ⁴ Election-specific risk controls are operationalised via European Commission ⁵ election guidance and the DSA Elections Toolkit for regulators, which explicitly addresses AI-generated impersonation and manipulation risks and prescribes pre-/during-/post-election mitigations and coordination. ⁶

However, gaps remain that parliaments can address: (a) clear election-period “fast lanes” for provenance, labelling, and incident response; (b) enforceable minimum standards for political actors (not just platforms) on disclosure of synthetic and targeted content; (c) scalable parliamentary oversight powers to compel evidence and measure compliance; and (d) cross-border data-sharing with privacy safeguards and independent research access. ⁷

This document proposes a policy package covering platform obligations, transparency, labelling/provenance, takedown/reporting, election-period safeguards, audit and penalties, cross-border data-sharing, and parliamentary oversight—aligned to the direction of the EU AI Act transparency duties for synthetic media and deepfakes and the DSA’s systemic-risk governance model. ⁸ It includes a comparative cross-jurisdiction analysis (EU, UK, US, India, Australia, Canada, Japan, and selected EU neighbours), a phased implementation roadmap, governance and enforcement options, monitoring metrics, and model legislative clauses.

Assumption (explicit): the request refers to “recent 2023/2025 AI Summit outcomes in India”, but the specific event/year is ambiguous. This report therefore uses official outcomes from the 2023 GPAI Summit Ministerial Declaration (New Delhi) and official Government of India sources for India’s election-related synthetic-media disclosure move and summit diplomacy around the “next AI Summit”, noting that some summit declaration pages are not accessible without JavaScript. ⁹

Problem statement and objectives

AI-assisted disinformation creates election-integrity harms across four pathways: (i) deception/impersonation (synthetic audio/video or “deepfake” content), (ii) scale (mass-produced narratives micro-targeted to local constituencies), (iii) authenticity erosion (widespread doubt in genuine evidence), and (iv) operational acceleration (automated coordination and rapid iteration). ¹⁰ Policy responses must treat election integrity as a “systemic risk” problem, not merely a content-by-content moderation problem. ¹¹

A core design constraint is that democratic systems protect political expression and the public’s right to receive information. Measures that are overly broad, vague, or implemented without due process risk chilling lawful speech and being challenged in constitutional/human-rights litigation. ¹² Separately, privacy law constrains election-integrity monitoring when it involves personal data, behavioural profiling, or cross-border sharing of user identifiers; governance therefore needs strict purpose limitation, minimisation, and independent oversight. ¹³

Objectives for a parliamentary policy package:

Create enforceable, technology-neutral duties for major platforms to prevent, detect, label, and mitigate AI-generated election manipulation, including through systemic risk assessment and independent audits. ¹⁴

Standardise provenance and disclosure obligations for synthetic media and AI-generated political content, including machine-readable markings and user-facing labelling, while allowing exemptions for satire/arts with appropriate disclosure. ¹⁵

Establish an election-period safeguards regime (“heightened duty of care”) with rapid escalation, transparent takedown/appeal processes, and coordination across regulators and borders. ¹⁶

Equip parliament with durable oversight powers (data access, hearings, reporting duties, audit review) and metrics to evaluate whether the regime is working, without politicising enforcement. ¹⁷

Comparative policy landscape

The policy environment is converging on three pillars: (a) platform due diligence and transparency, (b) synthetic content labelling/provenance, and (c) election-specific interventions (ad registries, disclaimers, restricted windows, or risk mitigation). ¹⁸

The EU is the most structurally complete, combining platform governance (DSA), AI transparency (AI Act), and political advertising regulation (Regulation (EU) 2024/900), which explicitly targets the complexity of online political advertising and information manipulation threats and entered into full application in October 2025. ¹⁹

In the UK, the Online Safety Act establishes broad platform safety duties centred on risk assessments and systems/processes, while election-material transparency is strengthened through statutory “digital imprints” guidance laid under the Elections Act 2022. ²⁰ The US approach remains fragmented: a federal interpretive approach via the Federal Election Commission’s application of existing “fraudulent misrepresentation” rules to AI campaign ads and communications regulation for AI-voice robocalls, coupled with state-level election deepfake laws. ²¹

India combines intermediary due-diligence duties (IT Rules), central government advisories on deepfakes and misinformation compliance, and election-sector guidance on labelling AI-generated campaign content (as summarised by an official government AI portal), with recent summit diplomacy through GPAI's New Delhi Ministerial Declaration. ²² Australia has strong online safety enforcement mechanisms (removal notices/penalties and "basic expectations") but has paused a proposed national misinformation/disinformation bill, leaning instead on voluntary codes and existing safety regulation. ²³ Canada has a clear election-specific obligation: online platforms must maintain a registry for regulated political ads, per Elections Canada guidance. ²⁴ Japan's approach emphasises platform transparency/fairness duties under its digital platform legislation, with less election-specific AI tooling in the legal core. ²⁵

Selected EU neighbours show movement towards DSA-like platform regulation: Switzerland's Federal Council has advanced draft regulation to impose fairness and transparency duties on very large platforms and search engines. ²⁶ Norway's position is shaped by the EEA mechanism for internal market law incorporation and EFTA surveillance structures, relevant to EU-aligned platform governance trajectories. ²⁷

Comparative analysis table

Jurisdiction	Core instruments in force or active	Scope and obligations	Enforcement and penalties	Election-specific measures	Parliamentary oversight hooks
EU	DSA; AI Act; Political Advertising Regulation (EU) 2024/900; DSA election guidance & toolkit ²⁸	Systemic-risk assessment/mitigation for VLOPs/VLOSEs; ad transparency; independent audits; researcher access; synthetic content marking + deepfake disclosure duties ²⁹	DSA fines up to 6% global turnover and penalty payments up to 5% average daily income/turnover per day; AI Act fines up to €35m/7% for prohibited practices and €15m/3% for other obligations including Article 50 ³⁰	DSA electoral-process mitigation guidance; toolkit; crisis response mechanisms referenced as relevant for elections ⁶	Commission reporting/visibility via transparency databases and harmonised transparency reporting; EU-level governance bodies engage regulators and support audits/monitoring ³¹

Jurisdiction	Core instruments in force or active	Scope and obligations	Enforcement and penalties	Election-specific measures	Parliamentary oversight hooks
UK	Online Safety Act 2023; Elections Act digital imprints guidance ³²	Risk-assessment and safety duties for regulated services; imprint requirements for certain digital campaign material to show responsibility ³³	Regulator-led codes and enforcement mechanisms under the Online Safety Act (systems/process obligations) ³⁴	Campaign transparency via digital imprints; ongoing regulator attention to deepfakes (e.g., attribution/watermarking toolkit) ³⁵	Statutory guidance laid before Parliament; parliamentary committees scrutinise electoral security and platform safety implementation ³⁶
US	FEC interpretive rule on AI in campaign ads; FCC prohibition of AI-voice robocall deception; EO 14110 (federal direction on provenance/watermarking) ³⁷	Primarily interpretive/sectoral: fraudulent misrepresentation rules and communications law; executive-branch push toward labelling/detection standards ³⁸	Federal enforcement via agency authorities; broader platform accountability remains limited at federal level ³⁹	State election deepfake laws (criminal/civil, disclaimers, time windows), e.g., Texas deceptive video offence; California deceptive media rules and disclosure windows ⁴⁰	Oversight mainly via congressional hearings and agency processes (less structured “election integrity” platform regime) ⁴¹
India	IT Rules (updated); MeitY advisories; election-sector AI-content labelling advisory (official summary); GPAI 2023 Ministerial Declaration ²²	Intermediary due diligence + grievance; government advisories emphasise compliance on misinformation/deepfakes; public guidance on labelling AI-generated campaign content ⁴²	Enforcement via intermediary obligations and government compliance mechanisms ⁴³	Explicit labelling expectation for AI-generated campaign material (government portal summary); summit diplomacy includes responsible AI framing (GPAI declaration) ⁴⁴	Parliamentary/governmental oversight through ministry directives and election administration oversight; summit-level commitments inform governance direction ⁴⁵

Jurisdiction	Core instruments in force or active	Scope and obligations	Enforcement and penalties	Election-specific measures	Parliamentary oversight hooks
Australia	Online Safety Act 2021; Basic Online Safety Expectations; voluntary misinformation code; misinformation bill not proceeding ²³	Regulatable online harms; expectations framework for providers; voluntary “best practice” for mis/disinformation ⁴⁶	eSafety removal notice penalties referenced in statutory review materials; sector regulator roles remain significant ⁴⁷	Election-specific AI disinformation provisions are less central in the main national platform statute; relies on broader safety tooling and voluntary code approaches ⁴⁸	Strong parliamentary committee processes around proposed misinformation legislation; transparency expectations are politically scrutinised ⁴⁹
Canada	Canada Elections Act online political ads registry (2018 amendments; Elections Canada guidance) ²⁴	Platforms meeting thresholds must maintain a registry of regulated political ads during relevant periods ²⁴	Statutory compliance enforced through election law mechanisms ²⁴	Direct election-period safeguard via registries for partisan/election advertising ²⁴	Parliamentary accountability through election law and Elections Canada reporting/scrutiny ²⁴
Japan	Digital platform transparency/fairness act (official translation resources) ²⁵	Designated platforms must disclose terms/conditions and undergo evaluation/self-assessment to improve transparency and fairness ²⁵	Administrative implementation via sector governance; competition remedies referenced via policy framing ⁵⁰	Election-specific AI content rules are not prominent in the core platform statute ⁵¹	Oversight through administrative reporting and legislative scrutiny of digital platform governance ⁵⁰
Switzerland (EU neighbour)	Federal Council platform regulation initiative and consultation on law for large platforms/search engines ²⁶	Draft law to strengthen user rights and require platform fairness/transparency and reporting mechanisms ²⁶	Consultation-stage; enforcement design evolving ⁵²	Election-specific AI provisions not central in public framing; platform accountability is the main thrust ⁵³	Executive-to-parliament pipeline through bill consultation and legislative adoption process ⁵²

Jurisdiction	Core instruments in force or active	Scope and obligations	Enforcement and penalties	Election-specific measures	Parliamentary oversight hooks
Norway (EU neighbour/EEA)	EEA incorporation pathway for internal market law; EEA/EFTA engagement on DSA concept ²⁷	EEA mechanisms support incorporation of EU internal market law; enforcement monitored through EFTA structures ²⁷	Compliance oversight via EFTA Surveillance Authority ⁵⁴ (structural) ⁵⁵	Election-specific measures depend on national frameworks; EU-aligned platform governance trajectory is the key structural factor ⁵⁶	Parliamentary scrutiny through national implementation of incorporated rules and oversight of regulators ⁵⁷

Detailed policy recommendations

This section sets out a “minimum viable regime” (MVR) that a parliament can legislate to address AI-generated election manipulation, while remaining compatible with international human rights and privacy requirements. ⁵⁸ The recommendations are designed to be interoperable with the EU’s DSA/AI Act approach (where relevant) and to be implementable in jurisdictions without those instruments through domestic platform-accountability and election laws.

Platform obligations

Parliament should legislate a tiered “election integrity duty of care” for large platforms and ad intermediaries, triggered by reach/active users and/or by paid political advertising services, with higher duties for “systemically significant services” (mirroring the DSA’s differentiation for very large platforms/search engines). ⁵⁹ The duty should be framed as an obligation to maintain proportionate systems/processes—not as a requirement to reach perfect outcomes—while still requiring measurable risk reduction. ⁶⁰

Core duties should include: (a) maintaining an election-risk assessment and mitigation plan; (b) ensuring clear notice-and-action and appeal processes; (c) maintaining provenance/label enforcement for synthetic media; (d) maintaining political-ad transparency and targeting constraints; and (e) providing rapid escalation channels to election authorities and regulators during defined election periods. ⁶¹

Transparency requirements

Mandate two transparency layers: public transparency (to voters, journalists, civil society) and regulator/independent-research transparency (to enable accountability without undermining privacy or security). ⁶²

Public-facing transparency should include: explanations of ad targeting parameters for political/issue ads; the identity of sponsors/beneficiaries; and meaningful information about recommender system choices during election periods (e.g., non-profiling options, where applicable). ⁶³ In EU-aligned

contexts, these concepts already map to DSA transparency and advertising provisions, and EU regulators have produced harmonised transparency reporting templates which improve comparability.

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Regulator transparency should include continuous logging of content moderation “statements of reasons” and searchable transparency datasets (for example, the EU’s DSA Transparency Database model demonstrates near real-time tracking of platform content moderation decisions and provides a dashboard for non-programmers).

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Content labelling and provenance for synthetic media

A modern regime must distinguish (i) provenance marking by the creator/provider and (ii) disclosure by the publisher/deployer. The AI Act provides a practical blueprint:

Providers of AI systems generating synthetic audio/image/video/text should ensure outputs are marked in a machine-readable format and detectable as artificially generated/manipulated, with technically feasible, interoperable, robust methods.

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Deployers who create or manipulate content constituting a deepfake (AI Act concept of “ultrasuplantación”) must publicly disclose that the content is artificially generated/manipulated, with a tailored limitation for clearly creative/satirical works (disclosure required, but not in a manner that prevents enjoyment of the work).

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Deployers publishing AI-generated/manipulated text “to inform the public on matters of public interest” should disclose the artificial generation, unless human editorial responsibility and review are clearly established (the AI Act recognises an editorial-control exemption).

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Parliaments should adopt these structural concepts, because they operationalise a workable, scalable labelling standard while explicitly addressing freedom of expression concerns and providing lawful-use exceptions.

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Separately, provenance toolkits should be promoted via standards bodies and regulator guidance. The UK regulator has already published a “deepfake defences” attribution toolkit describing watermark evaluation and attribution methods, demonstrating that technical guidance can be converted into enforceable expectations.

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Takedown, reporting, and redress mechanisms

A credible system must be “fast, fair, and reviewed”. Parliaments should legislate:

A standardised, high-priority reporting channel for election manipulation and impersonation, including for candidates and election administrators, and a trusted-flagger-style priority channel for election authorities and accredited fact-checking/research organisations (with safeguards against abuse).

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A “statement of reasons” requirement for any action taken on election-related content (remove/label/reduce reach/restrict ads), with machine-readable categorisation suitable for oversight databases and public transparency.

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Notice-to-action time objectives (NTOs) differentiated by severity (e.g., imminent impersonation, voter suppression instructions, or threats), but with due-process appeals and rapid correction of false

positives (including restoration). This is consistent with the DSA model that pairs transparency and rights protections with platform duties. ⁷²

Election-period safeguards

An “election period” should be defined in law (for example: from the dissolution/announcement date until certification of results, plus limited post-election windows for disputes). During that period, require heightened controls:

Pre-election “integrity readiness dialogues” and contact protocols between platforms, election authorities, and regulators, reflecting EU practice where election guidance recommends measures before, during, and after electoral events. ⁷³

A mandatory election integrity risk assessment and mitigation plan for systemic platforms, aligned to systemic-risk assessment and mitigation duties. ¹¹

An election incident response structure (single hotline, triage rules, evidence preservation, public communication templates). The DSA Elections Toolkit for regulators frames incident response as a core area and explicitly includes manipulation of public opinion through impersonation and deceptive AI-generated content and foreign information manipulation. ⁷⁴

Political advertising safeguards: mandatory transparency/label for political and issue advertising, registry/repository requirements, and targeting limits (notably where advanced targeting drives opaque persuasion risks). EU Regulation 2024/900 demonstrates an explicit legislative pathway for harmonised standards on political advertising transparency and targeting. ⁷⁵ Canada’s Elections Act approach (ad registries for regulated political ads) shows a simpler, election-specific control that can be applied regardless of a broader platform safety act. ²⁴

Audit and penalty regimes

Parliament should embed a “trust-but-verify” enforcement model: large platforms must undergo independent audits of election-risk controls and publish audit summaries, while regulators retain the power to demand fuller evidence and run investigations. ⁷⁶

Penalty design should be credible at scale:

For systemic platforms, adopt turnover-based fines, not flat fines, to avoid “cost of doing business” dynamics. The DSA sets a reference point: maximum fines up to 6% of global annual turnover, plus periodic penalty payments (up to 5% of average daily income/turnover per day) to compel compliance. ⁷⁷

For AI transparency and synthetic content labelling obligations, adopt a tiered penalty regime similar to the AI Act: higher penalties for prohibited practices and meaningful penalties for failures to comply with transparency duties (explicitly including the AI Act’s Article 50 obligations). ⁷⁸

Make penalties escalation-based: warnings and improvement notices first for manageable breaches, then fines and (only for persistent, egregious noncompliance) disruptive remedies such as service feature restrictions or ad-service suspensions during election periods, with judicial oversight. ⁷⁹

Cross-border data-sharing and vetted researcher access

Disinformation campaigns are frequently cross-border; election integrity therefore benefits from structured, privacy-preserving sharing of indicators and platform response data. ⁸⁰

Within EU-style governance, parliaments should strengthen:

A statutory basis for “vetted researcher” access to platform data on systemic risks, using the DSA Article 40 concept (“vetted researchers will be able to request data from VLOPs/VLOSEs to conduct research on systemic risks”), and ensuring GDPR-compliant data minimisation, security controls, and auditability. ⁸¹

A central transparency repository akin to the DSA Transparency Database, including common schemas and a user-friendly dashboard to allow oversight beyond programmers. ⁸²

A cross-border “election integrity exchange” operated by the national election authority and digital regulator that shares: hashes of known synthetic media, provenance signals, coordinated inauthentic behaviour indicators, and anonymised takedown/label metrics—explicitly excluding unnecessary personal data. ⁸³

Parliamentary oversight powers

Parliamentary oversight fails if it is limited to “after-action” hearings without data. Effective oversight should include:

A statutory duty for the regulator to publish election-incident and compliance reports, with standardised KPIs (see metrics section), and an obligation to brief a designated parliamentary committee at fixed intervals during election periods. ⁸⁴

A power for committees (or an appointed parliamentary oversight officer) to compel evidence from systemic platforms and regulators, including audit summaries, incident logs, and sampling access to labelled/taken-down content decisions (subject to confidentiality protections for trade secrets and security). ⁸⁵

A legal requirement that regulators remain independent and not subject to partisan direction in individual enforcement cases (to reduce weaponisation risk), while still being accountable to parliament for performance and budgets. ⁸⁶

Alignment with international standards: the Council of Europe ⁸⁷ AI Convention’s transparency and oversight principle explicitly includes identification of AI-generated content, supporting a parliamentary posture that treats provenance and oversight as rights-compatible governance fundamentals. ⁸⁸

Trade-offs and legal risks

Freedom of expression risk: aggressive takedown mandates can chill lawful political speech and satire. The AI Act’s approach offers a useful compromise: require disclosure/markings while carving out an approach for creative/satirical works that still preserves a disclosure duty but reduces the burden on presentation. ⁶⁷ The legal test should emphasise necessity and proportionality, aligned with Article 10 ECHR limitations. ⁸⁹

Privacy and data protection risk: election manipulation detection often relies on behavioural data and network analysis. GDPR requires clear purposes, minimisation, and lawful bases; “researcher access” and cross-border sharing must be tightly scoped and governed. ⁹⁰ In practice, you should prioritise aggregate indicators, cryptographic hashes, and metadata/provenance signals over raw user identifiers.

Operational risk: mandatory labelling can be evaded (e.g., screenshotting videos or re-encoding) and can be misused for “false labelling” attacks. Mitigation: require both provenance marking and platform-side detection/verification tools, and publish robustness and error-rate metrics (false positives and false negatives). ⁹¹

Political risk: parliamentary oversight can be politicised. Mitigation: embed independence rules, publish structured metrics, and rely on independent audits and public transparency repositories to reduce scope for narrative-driven oversight. ⁹²

Implementation roadmap

A realistic implementation should run in phases: immediate operational readiness, then legislative hardening, then iterative improvement based on measured outcomes. EU timelines illustrate why phased implementation matters: the AI Act’s general application date and staged applicability (including earlier applicability for certain elements and a defined regime for fines) shows that complex AI governance is rarely “instant”. ⁹³

Phasing

Immediate phase (months): establish an election integrity coordination cell, publish interim guidance for platforms and political actors on provenance/disclosure, and create emergency escalation channels with the election authority. This is consistent with DSA-style emphasis on preparedness and stakeholder management. ⁹⁴

Build phase (months): legislate the election integrity duty of care, synthetic media labelling requirements, and political advertising transparency standards; establish auditing and transparency reporting templates; stand up a transparency database and vetted researcher programme. ⁹⁵

Operationalisation phase (pre-election): run red-team exercises with platforms; conduct public awareness campaigns; test incident response; simulate high-risk scenarios (candidate impersonation, voter-suppression narratives, foreign interference). The DSA Elections Toolkit identifies incident response, monitoring/analysis, and communication/media literacy as key engagement areas. ⁹⁶

Post-election evaluation: publish a parliamentary report card on platform performance using KPIs (response times, label coverage, ad registry completeness, error rates), and update the next cycle’s standards. OECD’s framework emphasises strengthening governance and institutional architecture as a pillar for information integrity. ⁹⁷

Timeline

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timeline
  title Implementation phases for an AI-election integrity regime
  section Immediate readiness
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Establish election integrity coordination cell : 2026-04
 Interim provenance and disclosure guidance : 2026-05
 Platform escalation + evidence preservation protocols : 2026-06
 section Build and legislate
 Enact election integrity duty of care + audit powers : 2026-09
 Adopt synthetic content marking + deepfake disclosure rules : 2026-10
 Implement political ads transparency + registry rules : 2026-12
 section Operationalise
 Stand up transparency database + reporting templates : 2027-02
 Launch vetted researcher access programme : 2027-03
 Pre-election stress tests and readiness dialogues : 2027-04
 section Evaluate and iterate
 Post-election compliance report + parliamentary hearings : 2027-07
 Standards update + next-cycle guidance : 2027-09

Governance and enforcement options

A successful regime relies on credible, independent enforcement, but also on coordination between digital regulators and election authorities.

Option: integrate into the existing digital regulator. Where a jurisdiction already has a platform regulator (for example, the UK's Ofcom ⁹⁸ under the Online Safety Act), parliament can legislate election-integrity add-ons (synthetic media labelling and political ad transparency) while relying on the existing risk-assessment and systems/process enforcement machinery. ⁹⁹ This option is fastest but risks a perceived "mission creep" unless mandates are clarified.

Option: create an independent election integrity digital unit. Under this model, the election authority (e.g., Electoral Commission ¹⁰⁰ in the UK or Elections Canada ¹⁰¹) hosts a specialist unit that coordinates with the platform regulator and data protection authority, focusing on election-period protocols, ad registry compliance, and campaign disclosures. ¹⁰² This option is strong for electoral legitimacy but requires careful separation between administration and speech adjudication.

Option: co-regulation via codes of conduct backed by statutory enforcement. The EU's approach to integrating a voluntary disinformation code into the DSA framework as a benchmark shows how co-regulatory instruments can become enforceable expectations. ¹⁰³ In practice, parliament can authorise regulators to approve codes for synthetic media provenance, political ad verification, and election incident response, with enforceable backstops when codes are insufficient.

Cross-border governance considerations: the DSA Elections Toolkit emphasises information sharing between regulators, election authorities, platforms, civil society, fact-checkers, and researchers, and frames cooperation as essential. ⁹⁴ Where cross-border integration is relevant (especially within the EU), central transparency databases and harmonised reporting templates reduce coordination friction.

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For Australia, the governance picture illustrates an alternative: strong online safety regulator powers in general, complemented by voluntary mis/disinformation codes, while a proposed misinformation bill has been paused. ¹⁰⁵ Parliaments considering this route should recognise that voluntary codes may struggle to meet election-period "speed and certainty" needs unless backed by statutory escalation powers.

For India, governance is partly advisory- and intermediary-duty-led: MeitY advisories reinforce platform due diligence, and election authorities have moved toward requiring labelling of AI-generated campaign content (as summarised on an official government AI portal). ¹⁰⁶ The summit governance trajectory is visible via the 2023 GPAI Ministerial Declaration in New Delhi and India's diplomatic framing around global AI governance and standards. ¹⁰⁷

Monitoring and evaluation metrics

Parliament should legislate a standard “election integrity performance framework” with minimum KPIs and reporting formats. Where possible, metrics should align with transparency reporting templates and machine-readable reporting to enable independent analysis. ¹⁰⁸

Recommended metrics:

Synthetic content labelling coverage: percentage of AI-generated audio/image/video/text outputs distributed on-platform that carry machine-readable marks; percentage of detected deepfakes that receive user-facing disclosures; and the rate of successful evasion (re-encoding, screenshots) identified through sampling. ⁶⁶

Time-to-action: median and 95th percentile time from report (by users, candidates, election authorities) to labelling/removal/escalation; separate “critical harm” SLA categories for impersonation and voter suppression misinformation. ¹⁰⁹

False positives and redress: appeal rate, restoration rate, and time-to-restoration for wrongly actioned political content; publish these by category to demonstrate proportionality and reduce chilling effects. ¹¹⁰

Political ads transparency completeness: proportion of political and issue ads with complete sponsor identity, targeting parameters, and repository inclusion; completeness of platform ad registries (Canada-style) or repositories (EU-style). ¹¹¹

Systemic-risk compliance indicators: publication and quality scoring of election risk assessments, mitigation plans, and independent audit outcomes, including implementation of audit recommendations. DSA-style transparency reporting and audits provide a model. ¹¹²

Cross-border coordination indicators: number of cross-border incidents flagged and resolved; average time to share indicators with partner regulators; number of vetted researcher requests granted/denied and their processing times (with privacy-justified refusal reasons tracked). ¹¹³

Public trust and resilience: survey-based measures should be treated cautiously (per OECD work showing confidence can diverge from actual ability), so trust metrics must be paired with behavioural and operational indicators (e.g., reach of labelled content, warning-clickthrough, user reporting patterns). ⁹⁷

Model legislative clauses

The following clauses are illustrative drafting primitives intended to be adapted to domestic constitutional and administrative law. They are designed to be compatible in structure with

Clause A – Definitions

1. “Synthetic media” means audio, image, video, or text content that has been generated or materially manipulated by computational techniques, including machine learning, such that it would reasonably appear authentic to an ordinary person.
2. “Election period” means the period beginning on the official announcement or dissolution date for an election or referendum and ending on the official certification of results, plus any statutory dispute period.
3. “Systemically significant platform” means an online service that meets thresholds in (users/reach/revenue) and is designated by the regulator as presenting systemic risks to electoral processes.

Clause B – Provenance marking duty (providers)

1. A provider of an AI system that generates synthetic media shall ensure that outputs are marked in a machine-readable form enabling detection that the content was generated or manipulated artificially.
2. Marking methods shall be interoperable, robust, and proportionate to technical feasibility and the state of the art, as specified by regulator-issued standards.

Clause C – Public disclosure duty (publishers/deployers)

1. Any person or entity that publishes synthetic media in a context liable to influence electoral participation or voting choices shall disclose, clearly and prominently, that the content is artificially generated or manipulated.
2. Where content is part of a clearly artistic, satirical, or fictional work, disclosure shall remain required but may be presented in a manner that does not unreasonably impair presentation of the work.

Clause D – Political advertising transparency and registries

1. Platforms and ad intermediaries shall maintain a publicly accessible repository of political and issue advertising displayed during an election period, including:
 - (a) sponsor identity and beneficial controller (where applicable),
 - (b) expenditure range and distribution dates,
 - (c) targeting parameters and delivery criteria,
 - (d) whether synthetic media was used and the applicable disclosures.
2. Repositories shall be searchable, bulk-downloadable, and retained for a statutory minimum period.

Clause E – Election integrity duty of care (systemic platforms)

1. Systemically significant platforms shall:
 - (a) conduct and maintain an election integrity risk assessment,
 - (b) implement reasonable and proportionate mitigation measures,
 - (c) maintain a rapid escalation channel for the election authority and regulator,
 - (d) publish an election integrity transparency report within a statutory period after the election.

Clause F – Audit and enforcement

1. Systemically significant platforms shall undergo annual independent audits of election integrity controls.
2. The regulator may impose:
 - (a) turnover-based administrative fines for serious noncompliance,
 - (b) periodic penalty payments to compel compliance with notices,
 - (c) election-period restrictions on paid political advertising services for persistent and egregious breaches, subject to judicial review.

Clause G – Parliamentary oversight and reporting

1. The regulator shall submit an election integrity implementation report to Parliament after each national election, including KPIs, enforcement actions, audit themes, and systemic lessons learned.
2. Parliamentary committees may require testimony and production of documents from designated platforms and the regulator, subject to statutory confidentiality safeguards.

Jurisdictional note on adapting these clauses

In EU member states, many of the above concepts sit alongside directly applicable EU law (DSA/AI Act/Regulation 2024/900). Domestic legislation should therefore focus on (i) designating competent authorities, (ii) creating election authority-regulator protocols, (iii) extending disclosure duties to political actors and domestic campaign law, and (iv) funding and parliamentary oversight—rather than re-legislating EU obligations. ²⁸

In the UK, domestic clauses should be crafted to complement (not conflict with) the Online Safety Act's systems/process enforcement model and the Elections Act digital imprint regime, while using regulator technical toolkits (e.g., deepfake attribution guidance) to define "reasonable steps" standards. ¹¹⁵

In the US, the model would likely need to be implemented through a combination of state election laws (deepfake disclosure windows and civil remedies) and sector regulators' ad disclosure rules (where authorised), given current federal constraints and the existing reliance on interpretive agency action. ¹¹⁶

In India, intermediary due diligence and election advisory approaches can be strengthened through statutory clarity on labelling, repository duties for political ads, and independent auditability, building on existing IT Rules and ministry advisories and aligning with responsible AI framing in summit declarations. ¹¹⁷

¹ ⁵ ¹⁰ ⁸⁰ ⁹⁷ ⁹⁸ Facts not Fakes: Tackling Disinformation, Strengthening ...

https://www.oecd.org/content/dam/oecd/en/publications/reports/2024/03/facts-not-fakes-tackling-disinformation-strengthening-information-integrity_ff96d19f/d909ff7a-en.pdf?utm_source=chatgpt.com

² ¹² ⁸⁹ European Convention on Human Rights

https://www.echr.coe.int/documents/d/echr/convention_ENG?utm_source=chatgpt.com

3 8 15 66 67 68 78 91 93 114 Reglamento (UE) 2024/1689 del Parlamento Europeo y del Consejo, de 13 de junio de 2024, por el que se establecen normas armonizadas en materia de inteligencia artificial y por el que se modifican los Reglamentos (CE) n.º 300/2008, (UE) n.º 167/2013, (UE) n.º 168/2013, (UE) 2018/858, (UE) 2018/1139 y (UE) 2019/2144 y las Directivas 2014/90/UE, (UE) 2016/797 y (UE) 2020/1828 (Reglamento de Inteligencia Artificial) Texto pertinente a efectos del EEE.

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